

TENTATIVE RULING

Case: **Garcia v. Manukyan**
 Case No. CV-2025-1244

Hearing Date: **January 13, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Gabriel Garcia, by and through his attorney-in-fact, Libeth Mora's unopposed motion to deem matters admitted is **GRANTED**. (Code Civ. Proc., § 2033.280.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 is required.

TENTATIVE RULING

Case: **Martinez v. Hwang**
Case No. CV-2025-0700

Hearing Date: **January 13, 2026** **Department Fourteen** **9:00 a.m.**

Motion to set aside:

Ralph B. Hwang, individually and as a Trustee of B R & Hwang Family Trust and Feng-Yu Hwang, individually and as a Trustee of B R & Hwang Family Trust's ("defendants") request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendants' unopposed motion to set aside/vacate plaintiffs James Martinez and Beatrice Chaidez's request for entry of default/clerk's entry of default is **GRANTED**. (Code Civ. Proc., § 473.) "An attorney has both an ethical and statutory obligation to warn opposing counsel, if counsel's identity is known, of an intent to seek a default and to give counsel a reasonable opportunity to file a responsive pleading." (*Shapell SoCal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 203 [*"Shapell"*]; *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 137; Code Civ. Proc., § 583.130.) Despite knowing the identity of defendants' counsel, plaintiffs sought and obtained defaults against defendants without notification and allowing a reasonable opportunity for defendants to file a responsive pleading. (Cammack decl., ¶¶ 3, 8-13.) Several factors, in combination with this breach of ethics and violation of section 583.130, necessitate setting aside the defaults entered against defendants. (*Shapell, supra*, 85 Cal.App.5th at pp. 216-217.) Specifically, based on the evidence presented, plaintiffs' counsel knew the identity of defendants' counsel before the initiation of this litigation, plaintiffs' counsel gave no warning or notice before seeking entry of default against defendants, and there is no apparent prejudice as to plaintiffs. (Cammack decl., ¶¶ 3, 4, & 12; RJN, Exhibits 10-11; see also *Lasalle, supra*, 36 Cal.App.5th at p. 134.)

Defendants' answer, attached to their notice of motion, is deemed filed as of January 13, 2026.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.